

September 18, 2026, Probate Tentative Rulings

1. P15-15829 In the Matter of Breanna S. Martin

No appearances are required. The conservatorship of the person shall continue. The conservatorship still appears to be warranted. The Conservators are acting in the best interests of the Conservatee regarding the Conservatee's placement and quality of care, including physical and mental treatment. The next review is set for September 15, 2028, at 9:00 a.m., in Department 6. The court investigation fee for this biennial review is waived.

2. P17-16243 In the Matter of Emily Ann Dorton

No appearances are required. The Court continues this matter to December 18, 2026, at 9:00 a.m., in Department 6 and sets an order to show cause hearing for the same date and time. Conservator Cynthia Holley shall show cause why she should not be sanctioned and/or removed as conservator for failing to file an accounting as ordered by this Court on June 26, 2026. The clerk shall serve notice of the order to show cause.

3. P19-16497 In the Matter of Jonathan G. Best

No appearances are required. The Court continues the biennial review to December 18, 2026, at 9:00 a.m., in Department 6 to permit counsel for conservatee additional time to meet and confer.

Separately, the petition for accounting is granted as prayed. A proposed order has been submitted.

4. P21-16877 In the Matter of Ian Franklin Jay

No appearances are required. The conservatorship of the person shall continue. The conservatorship still appears to be warranted. The Conservator is acting in the best interests of the Conservatee regarding the Conservatee's placement and quality of care, including physical and mental treatment. The next review is set for September 15, 2028, at 9:00 a.m., in Department 6. The court investigation fee for this biennial review is waived.

5. PR0000146 In the Matter of Rock Anthony Meade

No appearances are required. The petition for final distribution is granted as prayed. A proposed order has been submitted.

6. PR0000330 In the Matter of Virginia Engel Morin

No appearances are required. The conservatorship of the person and estate shall continue. The conservatorship still appears to be warranted. The Conservator is acting in the best interests of the Conservatee regarding the Conservatee's placement and quality of care, including physical and mental treatment. The next biennial review is set for September 15, 2028, at 9:00 a.m., in Department 6. It is alleged the estate has sufficient funds to pay for the investigative fee. Quest investigations shall submit their fee request. Absent objection, the Court shall order the estate to pay the investigation fee.

The Court notes that an annual accounting is due. The Court sets a hearing on December 18, 2026, at 9:00 a.m., in Department 6 regarding the same. Conservator shall file an annual accounting in advance of the continued court date.

7. PR0000353 In the Matter of Sylvia De Mieur

No appearances are required. The conservatorship of the person and estate shall continue. The conservatorship still appears to be warranted. The Conservator is acting in the best interests of the Conservatee regarding the Conservatee's placement and quality of care, including physical and mental treatment. The next biennial review is set for September 15, 2028, at 9:00 a.m., in Department 6. It is alleged the estate has sufficient funds to pay for the investigative fee. Quest investigations shall submit their fee request. Absent objection, the Court shall order the estate to pay the investigation fee.

The Court notes that an annual accounting is due. The Court sets a hearing on December 18, 2026, at 9:00 a.m., in Department 6 regarding the same. Conservator shall file an annual accounting in advance of the continued court date.

8. PR0000786 In the Matter of Gary Spencer

No appearances are required. The petition to confirm the existence of the Spencer Trust is granted as prayed and the Nevada County Public Guardian is appointed as successor trustee. A proposed order has been submitted. The Court appreciates the thorough and thoughtful briefing of the Public Guardian.

9. PR0000809 In the Matter of Griffin Wayne Johnson Murphy

Appearances are required. Allyson Siobhan Johnson shall show cause why she should not be sanctioned for failing to file an inventory and appraisal as ordered by this Court on November 10, 2025.

10. PR0000844 In the Matter of Janet Schaper

No appearances are required. Petitioner Janet Schaper's April 10, 2026, petition to enforce court-approved stipulation is denied.

Code of Civil Procedure section 664.6 permits a court to retain jurisdiction to enforce the settlement. However, the court's power is limited in that it cannot resolve new issues that have arisen after settlement. *See Howeth v. Coffelt* (2017) 18 Cal.App.5th 126, 134. Petitioner requests the Court in her original petition to require transfer of the remaining Shaper Living Trust funds to the Michael Schaper Special Needs Trust. She also requests the Court to grant other relief, *i.e.*, to issue a temporary stay of appointment of the trustee of a special needs trust, order an accounting from 2024 to present related to the present trust, characterize certain monies and property as trust property, require bond for the proposed trustee of the special needs trust, and order that the document creating the special needs trust be reviewed and approved by this Court. In her September 9, 2026 Response, Petitioner renews the request to transfer the remaining funds (after administration expenses) and then requests other relief, *i.e.*, to compel Respondent to file an instrument under which Andrew Harker is serving.